



Obstacle race

The Special Intensive Revision exercise is threatening universal adult franchise

On Gandhi’s birth anniversary, many Opposition parties, student groups and other citizens took to the streets in Delhi, Mumbai and elsewhere demanding the resignation of Chief Election Commissioner (CEC) Gyanesh Kumar. Their grievance was that Mr. Kumar has presided over a Special Intensive Revision (SIR) exercise meant to “clean” the electoral rolls, but in practice has become an exercise in the serial disenfranchisement of lakhs of Indian citizens. The BJP-led Union and State governments reacted predictably, refusing permission for the protest and imposing prohibitory orders. In Delhi, the government shut down the Internet in the Jantar Mantar area, closed 11 Metro stations and detained over 700 protesters. In Mumbai, the police denied permission for the gathering at Shivaji Park, but the protesters turned up anyway. The reason for the anger is plain. Emboldened by a deferential Supreme Court verdict upholding the SIR’s constitutional validity, the Election Commission of India (ECI) has taken the flawed method that it first adopted in Bihar, added a new exclusion criterion called “logical discrepancies” that it first implemented in West Bengal, and extended it from State to Union Territory (UT). The enumeration process puts the onus on electors to prove their eligibility, with many deleted first and verified later. Getting back onto the rolls after being struck off the draft is onerous, while dubious mass requests for deletion are easy to file and quick to process. Nearly 13.4 crore electors have been removed from the draft rolls across 30 States and UTs – about 14% of the electorate before the revision. Each phase has deleted more than the last: 8.3% in Bihar, 12.9% across the 12 States and UTs of Phase 2, and 17% in Phase 3.

The ECI has said that deleted electors can return during the claims phase, but only as fresh applicants provided they find that they have been struck off. The ECI’s own members objected to the plainly illegal changes to procedure. Form 6 was altered without any amendment to the rules, asking applicants whether they, or their parents or grandparents, appeared on the roll of the last SIR. In West Bengal, 16.1 lakh requests were filed to remove electors whom judicial officers had already cleared. A centralised roll database in New Delhi helped make this possible. The ECI has now asked BLOs to restore deleted voters to the rolls; it is an implicit admission that the process disenfranchised many. The semi-corrective steps do not absolve the two Election Commissioners. As majority in the ECI, Sukhbir Singh Sandhu and Vivek Joshi could have overruled the CEC. The exercise, as it is being carried out now, is an obstacle not only to universal adult franchise but also to electoral democracy itself.

Rescue act

Preventing ecological degradation is the way to protect wildlife

The first tiger to be reintroduced in West Bengal represents a triumph of bureaucracy, not ecology. After the National Tiger Conservation Authority found no tigers in the Buxa, Dampa, and Palamau reserves by 2018, it mooted a programme with the Bengal Forest Department and the Wildlife Institute of India that has culminated with a royal Bengal tigress caught in Bihar to be released in Buxa. She is the first of seven to be relocated over two years. Buxa is dotted with settlements and surrounded by revenue villages and tea estates. The region already hosts an elephant population routinely threatened by a railway line, with the railways also planning to restore a route to Jainti. Commercial traffic on the Bhutan-West Bengal road through Buxa is another problem. Estates are also notorious for fragmenting the landscape, including migration corridors. The area’s forests have turned into dense woodland with a closed canopy, stifling the growth of grasses and causing herbivore populations to dwindle. The density of chitals, tigers’ prey, is dismal; goats, macaques and cattle have become more common in tiger diets in place of their preferred ungulates. Since 2018, the collaboration has reintroduced chitals; artificially opened some canopies to help revive grasslands; and relocated villagers from the reserve’s core to mitigate human-wildlife conflicts. This last measure is, however, also a window into the cynical character of the reintroduction programme.

From 1973, India followed preventive conservation practices that protected source populations and their habitats, and maintained prey bases and corridors. Buxa, however, belongs to a more recent, more reactive tradition that also includes Sariska and Panna, where authorities intervened only after tiger populations crashed. A reintroduction programme showcases technical capabilities but is also more expensive and heavy-handed, and reflects Project Tiger’s problematic belief that the core habitat needs to be inviolate – one the state machinery has used to override the rights of Adivasis and forest-dwelling communities and disrupt incomes from ecotourism. The reserve is also part of an international wildlife corridor contiguous with Phibsoo in Bhutan, to the north, and Manas in Assam to the east. If these forests offer higher prey density or fewer disturbances, the tigers may disperse. Success at Buxa means introduced tigers establish territories and produce cubs, which survive and breed, with natural immigration maintaining genetic diversity. But success should also be an advance, rather than a rescue, and entails monitoring ecological deterioration such that the state does not wait for tigers to vanish to act and involving communities in and around Buxa in decisions about preventing conflicts and protecting livelihoods.

On September 23, a two-judge Bench of the Supreme Court of India, comprising Justices Dipankar Datta and Satish Chandra Sharma, delivered a split verdict on a set of petitions which assailed the validity of the Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023. Remarkably, the judges were divided not on the merits of the challenge, but on whether a Bench of two was competent to decide the matter at all.

An appointment framework

The statute, which was enacted in December 2023, provides that the Chief Election Commissioner and the Election Commissioners shall be appointed on the recommendation of a selection committee comprising the Prime Minister, the Leader of the Opposition in the Lok Sabha, and a Union Cabinet Minister nominated by the Prime Minister. This law replaced an interim arrangement that a Constitution Bench of five judges had put in place in *Anoop Baranwal vs Union of India* (2023). Under that arrangement, the Chief Justice of India (CJI) sat as the third member in place of a Minister.

Midway through the hearings in the matter, which began in May, the Union government changed tack and argued that the case raised a substantial question of law as to the interpretation of the Constitution. It therefore claimed that the challenge, in terms of Article 145(3), ought to be heard by a Bench of at least five judges. Curiously, this plea was made even though it found no place in the Union’s counter-affidavit.

While Justice Datta rejected the request, Justice Sharma accepted it. Ordinarily, a difference of opinion on a Bench of two is resolved by a Bench of three. But reasoning that a ruling on which of their opinions was correct would only delay matters further, both judges jointly placed the papers before the CJI asking him to consider constituting a Constitution Bench. The upshot is this: the petitioners, who came to court in early 2024, must now wait again.

As Justice Datta rightly held, Article 145(3) merely prescribes that a case involving a substantial question of constitutional interpretation ought to be decided by a Bench comprising a minimum of five judges. It does not ask whether a case is important or whether a statute under challenge is new. As far back as in 1959, in *State of Jammu and Kashmir vs Thakur Ganga Singh*, the Court explained, albeit in a different context, what a question of constitutional interpretation entails. “The question of interpretation can arise only if two or more possible constructions are sought to be



Suhrit Parthasarathy

Advocate practising in the Madras High Court

The Court needs structural reform to strengthen constitutional adjudication and consistency

placed on a provision – one party suggesting one construction and the other a different one,” the Court had held. “But where the parties agree on the true interpretation of a provision or do not raise any question in respect thereof, it is not possible to hold that the case involves any question of law as to the interpretation of the Constitution.” A Bench of three judges later applied the same reasoning to Article 145(3) itself, in *People’s Union for Civil Liberties vs Union of India* (2003).

A deeper institutional fault

What, then, did *Anoop Baranwal* settle? Justices Datta and Sharma agreed that the committee the judgment had created was a stopgap, meant to last only until Parliament enacted a law. To that extent, the Union may well be right in claiming that the CJI’s place on the committee is by no means constitutionally entrenched. But the Constitution Bench also read Article 324 to require that appointments to the Election Commission be insulated from exclusive executive control. This was a clear declaration of law, binding on every court under Article 141. As Justice Datta held, whether a committee in which the executive holds two votes out of three meets that standard is merely a question of applying this settled rule to a new statute.

Justice Sharma’s opinion adopted a different test. He held that since “there is no authoritative decision of this Court till date pronouncing upon the constitutional validity of the [2023] Act, the matter must be heard by a Constitution Bench of not less than five Judges.” But almost any challenge to a fresh statute would, in this sense, be the first of its kind. On such logic, Benches of two judges could not have decided *Shreya Singhal vs Union of India* (2015), which struck down Section 66A of the Information Technology Act or *NALSA vs Union of India* (2014), which affirmed the right of transgender persons to their self-identified gender. Each called for a searching analysis of the Constitution and its guarantees.

Ultimately, though, a disagreement of this kind points to a deeper fault in the Court’s architecture.

When the Court first sat, in January 1950, it had six judges (a sanctioned strength of eight judges). Article 145(3), with its minimum of five, assumed that the Court would, in the main, sit together to interpret the Constitution. Today the Court has a sanctioned strength of 38 judges. It functions largely in panels of two and spends most of its time on special leave petitions. A Constitution Bench is assembled only when the CJI can spare at least five judges from this daily churn. The result, as the scholar Nick Robinson has argued, is not one court but many, with each Bench speaking in its own voice.

India’s Model BIT — a decade later, amid changes



Ivoti Singh
Advocate based in Delhi and has been a legal consultant to the Department of Economic Affairs, Government of India

India’s effort to revise its Model Bilateral Investment Treaty (BIT) comes nearly a decade after the revised model was approved in 2015. The Union Budget 2025-26 had announced that the model would be revamped and made more investor-friendly. The review comes as both India’s treaty practice and the international investment regime are changing. The question, therefore, is not simply whether India should offer investors more or less protection. It is about what India has learnt from the past decade and how those lessons should shape its new model.

A cautious framework

India’s 2015 Model BIT emerged from a particular historical context. The *White Industries Australia Limited vs Republic of India* award (2011) and broader concerns over investor-state arbitration contributed to a cautious approach. The model adopted a narrower definition of investment, carefully framed substantive protections, regulatory exceptions and a requirement to exhaust all judicial and administrative remedies for at least five years before commencing treaty arbitration.

India’s position has since evolved. It has concluded new-generation investment agreements with the United Arab Emirates (UAE), Uzbekistan and Israel. The India-UAE BIT provides for a three-year period for pursuing local remedies rather than the five-year period under the 2015 Model. The India-Israel Bilateral Investment Agreement (BIA), which entered into force in July 2026, similarly provides for a three-year period for pursuing local remedies. These agreements indicate greater flexibility in India’s treaty practice since 2015.

A Model BIT is generally not a rigid template but a starting point for negotiations. It signals to potential treaty partners the protections and obligations a state seeks, while allowing individual treaties to reflect the circumstances and priorities of the parties.

The new model should therefore provide a clear framework for India’s future treaty

India must draw lessons from a decade of investment treaty experience

negotiations, while leaving sufficient room for necessary adjustments in individual agreements. It is here that the contributions of Makane Moïse Mbengue are relevant. His scholarship teaches that a developing state need not always be a rule-taker under international investment law, but can also be a rule-shaper through its treaty practice. India’s revamp of its Model BIT offers a similar opportunity.

The international context has also changed. The United Nations Trade and Development (UNCTAD) points to a shift toward investment facilitation, cooperation, sustainable development and more carefully defined investor protections, with less reliance on traditional investor-state dispute settlement (ISDS). The United Nations Commission on International Trade Law (UNCITRAL) is examining reforms to the ISDS, including a permanent tribunal and appellate mechanism, damages and compensation, and dispute prevention. India’s revised Model BIT must therefore respond to a changing investment regime, not merely revisit the 2015 Model.

What a new model must factor in

The new model must consider whether to include the Most Favoured Nation (MFN) provision. In most investment treaties entered into by India, the MFN provision is absent, reducing the possibility for an investor to claim better protection under other treaties. However, if the new model includes this provision, it should be very clear about its scope. In *Emilio Agustín Maffezini vs Kingdom of Spain*, an MFN clause was used to bypass an 18-month local-court requirement by relying on more favourable dispute-settlement provisions in another treaty. *Plama Consortium Limited vs Republic of Bulgaria* rejected the importation of such provisions in the absence of a clear treaty provision. Recent treaty drafting also provides examples of expressly excluding dispute-settlement procedures from the scope of MFN clauses. The scope of the MFN provision should therefore be defined, particularly in relation to dispute settlement.

To be fair, the joint order signed by Justices Datta and Sharma recognises as much. *Anoop Baranwal* arose out of a petition instituted in 2015, was referred to a Constitution Bench in 2018, and was decided in 2023. The reference in *State of Uttar Pradesh vs Jai Bir Singh*, to decide what counts as an “industry”, lay dormant for 15 years from 2002, and took nine more to reach the nine-judge Bench that finally decided it. The judges themselves describe such delay as a source of “institutional embarrassment.”

The need for clearer rules

Delay of this kind carries with it a corrosive consequence: it presents the Court with a *fait accompli*. Take the present challenge. By the time it is decided, Commissioners appointed under the law would have overseen multiple State elections and likely multiple general elections too. In their joint order, the judges ask the CJI to explore a permanent Constitution Bench to decide pure questions of constitutional law. The idea is far from new. The Law Commission, in its 229th report in 2009, proposed a Constitution Bench sitting in Delhi, with Benches in different regions of the country hearing ordinary appeals.

A Bench of that form would need no constitutional amendment. The CJI, as the Master of the Roster, can create one tomorrow. But therein lies another difficulty. On a court of 38 judges, the power to decide who sits on which Bench is more than an administrative power. It can, and often does, shape outcomes. We might therefore ask ourselves whether such authority ought to be concentrated in a single office. For a permanent Bench to command confidence, it must be composed through a procedure that is transparent, settled in advance, and based on bright-line rules.

There is, however, a further difficulty. India’s legal system is built on a supposed commitment to the principle of *stare decisis*, a promise to stand by things previously decided. Yet, there is little to suggest that the Court’s Benches, whatever their size, will consistently honour what earlier Benches have held. The present case shows as much. A Bench of two, albeit divided, has declined to apply a principle settled by a Bench of five, and has sent the case to a Constitution Bench simply because the statute under challenge is new.

The Court, in its original conception, was seen as a guardian of the Constitution that would also hear appeals. Over time, though, it has become a forum that sits predominantly as a court of appeal rather than as a constitutional court. This inversion demands urgent correction. Otherwise, the gravest questions facing the republic will continue to be answered only once the answers have ceased to matter.

Investor obligations are another aspect of recent Indian practice that can help set a foundation for the new model. Under the India-Uzbekistan BIT, a state is expressly permitted to assert a counterclaim against an investor or investment. The new model can take a cue from this practice and lay down investor obligations and the circumstances in which counterclaims can be asserted.

The provision on dispute settlement also calls for reassessment. The five-year requirement to exhaust all judicial and administrative remedies under the 2015 Model could be assessed against the practices adopted by India since then. The three-year period for pursuing local remedies used in the India-UAE and India-Israel investment agreements shows greater flexibility in India’s approach. The Model BIT may also provide for more effective consultation and dispute-prevention procedures prior to arbitration, which are being discussed at UNCITRAL Working Group III.

Need for precision, clarity

The substantive protections should be equally precise. Clarity of language concerning expropriation and fair and equitable treatment (FET) could help avoid confusion in interpretation while safeguarding the right of the state to regulate for the public good. Sustainable development and responsible investment must not be left as policy declarations. Where India wishes to impose obligations on investors, those obligations should be expressed in clear legal terms. The changes need not make the new model uniformly more favourable either to investors or to states. The aim should be a model that is clearer, more workable and better suited to India’s position today, while allowing room for necessary adjustments in individual treaties.

With the revised model now reportedly finalised and awaiting Cabinet approval, the key question will be whether its final text adequately reflects the lessons of India’s treaty experience over the past decade while providing a coherent framework for future negotiations.

LETTERS TO THE EDITOR

Service extensions

We have recently witnessed a trend of granting routine service extensions to senior bureaucrats, particularly State Chief Secretaries, Union Secretaries and other officials, beyond their superannuation, leaving aside officials of parastatal bodies. While governments often cite “administrative

exigencies” and the need for continuity, the long-term institutional costs can outweigh the short-term benefits, particularly when no compelling administrative necessity exists. As constitutional heads have pointed out in public forums, extending the tenure of retiring officers can demoralise the

administrative system and create an artificial bottleneck at the top, limiting the career progression of capable officers next in line. Keeping a select few officials in key positions for extended periods can also blur the line between professional administration and political alignment. There must be

merit-based succession. Alternatively, if experience and continued public service are considered essential, the retirement age could be raised to 62. **Sanjoy Das Sarma,** Kolkata
Making dissent visible
The sparse media coverage of the CJP protests on

October 2 raises a larger question about what the media chooses to make visible. The media must recognise that it is dealing with a Gen Z already showing signs of deep disillusionment with institutions and politics. When an important section of this generation takes to the streets, ignoring or

underplaying it does not make the issue disappear. It can instead reinforce the perception that both the media and the government are indifferent to their concerns. **R. Narayanan,** Navi Mumbai
Letters emailed to letters@thehindu.co.in must carry the postal address.